



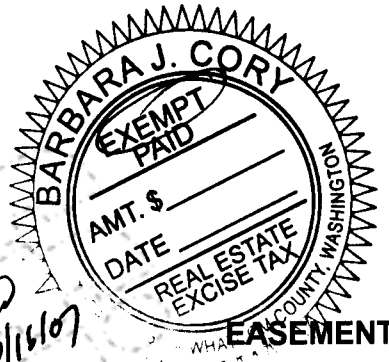
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EASE \$42.00
Whatcom County, WA

Request of: CHICAGO TITLE INSURANCE

RETURN ADDRESS:

Puget Sound Energy, Inc.
Attn: ROW Department
1700 East College Way
Mount Vernon, WA 98273



6041462
GRANTOR: SOUTH DOUGLAS, LLC
GRANTEE: PUGET SOUND ENERGY, INC.
SHORT LEGAL: PTN W1/2 NW1/4 SEC 30 TWP 39N RG 2 E W.M.
ASSESSOR'S PROPERTY TAX PARCEL: 390230 025386 0000

This document is filed for record by
CHICAGO TITLE INSURANCE CO.
As an accommodation only. It has not
been examined as to its execution or
as to its affect upon title.

For and in consideration of One Dollar (\$1.00) and other valuable consideration in hand paid, **SOUTH DOUGLAS, LLC**, a Washington limited liability company ("Grantor" herein), hereby conveys and warrants to **PUGET SOUND ENERGY, INC.**, a Washington Corporation ("Grantee" herein), for the purposes hereinafter set forth, a nonexclusive perpetual easement over, under, along across and through the following described real property ("Property" herein) in **Whatcom County, Washington**:

SEE EXHIBIT A, ATTACHED HERETO AND INCORPORATED BY REFERENCE.

Except as may be otherwise set forth herein Grantee's rights shall be exercised upon that portion of the Property ("Easement Area" herein) described as follows:

Easement No. 1: All streets and road rights-of-way as now or hereafter designed, platted and/or constructed within the above described property. (When said streets and roads are dedicated to the public, this clause shall become null and void.)

Easement No. 2: A strip of land 10 feet in width across all lots, tracts and open spaces located within the above described property being parallel to and coincident with the boundaries of all private/public street and road rights-of-way. (When said strips are dedicated to the public, this clause shall become null and void.)

Easement No. 3: A strip of land ten (10) feet in width with five (5) feet on each side of the centerline of grantee's facilities as now constructed, to be constructed, extended or relocated. (This easement description may be superseded at a later date with a surveyed description provided at no cost to Grantee.)

1. Purpose. Grantee shall have the right to use the Easement Area to construct, operate, maintain, repair, replace, improve, remove, and enlarge one or more utility systems for purposes of transmission, distribution and sale of electricity. Such systems may include, but are not limited to:

Underground facilities. Conduits, lines, cables, vaults, switches and transformers for electricity; fiber optic cable and other lines, cables and facilities for communications; semi-buried or ground-mounted facilities and pads, manholes, meters, fixtures, attachments and any and all other facilities or appurtenances necessary or convenient to any or all of the foregoing.

Following the initial construction of all or a portion of its systems, Grantee may, from time to time, construct such additional facilities as it may require for such systems. Grantee shall have the right of access to the Easement Area over and across the Property to enable Grantee to exercise its rights hereunder. Grantee shall compensate Grantor for any damage to the Property caused by the exercise of such right of access by Grantee.

No monetary consideration paid

2. Easement Area Clearing and Maintenance. Grantee shall have the right to cut, remove and dispose of any and all brush, trees or other vegetation in the Easement Area. Grantee shall also have the right to control, on a continuing basis and by any prudent and reasonable means, the establishment and growth of brush, trees or other vegetation in the Easement Area.

3. Grantor's Use of Easement Area. Grantor reserves the right to use the Easement Area for any purpose not inconsistent with the rights herein granted, provided, however, Grantor shall not construct or maintain any buildings, structures or other objects on the Easement Area and Grantor shall do no blasting within 300 feet of Grantee's facilities without Grantee's prior written consent.

4. Indemnity. Grantee agrees to indemnify Grantor from and against liability incurred by Grantor as a result of Grantee's negligence in the exercise of the rights herein granted to Grantee, but nothing herein shall require Grantee to indemnify Grantor for that portion of any such liability attributable to the negligence of Grantor or the negligence of others.

5. Abandonment. The rights herein granted shall continue until such time as Grantee ceases to use the Easement Area for a period of five (5) successive years, in which event, this easement shall terminate and all rights hereunder, and any improvements remaining in the Easement Area, shall revert to or otherwise become the property of Grantor; provided, however, that no abandonment shall be deemed to have occurred by reason of Grantee's failure to initially install its systems on the Easement Area within any period of time from the date hereof.

6. Successors and Assigns. Grantee shall have the right to assign, apportion or otherwise transfer any or all of its rights, benefits, privileges and interests arising in and under this easement. Without limiting the generality of the foregoing, the rights and obligations of the parties shall inure to the benefit of and be binding upon their respective successors and assigns.

DATED this 10th day of October, 2007.

GRANTOR/S:

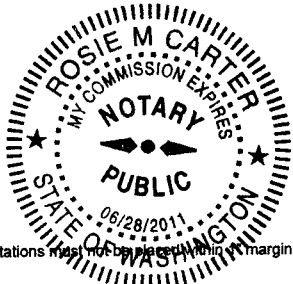
BY: William E. Kramer Member
Signature

Signature

STATE OF WASHINGTON)
) ss
COUNTY OF)

On this 10th day of October, 2007, before me, the undersigned, a Notary Public in and for the State of Washington, duly commissioned and sworn, personally appeared William E. Kramer, to me known or proved by satisfactory evidence to be the person/s who each signed as member, of **SOUTH DOUGLAS, LLC**, the limited liability company that executed the within and foregoing instrument, and acknowledged said instrument to be his/her free and voluntary act and deed and the free and voluntary act and deed of said limited liability company for the uses and purposes therein mentioned; and on oath stated that he/she was authorized to execute the said instrument on behalf of said limited liability company.

IN WITNESS WHEREOF I have hereunto set my hand and official seal the day and year first above written.



Notary seal, text and all notations must not be placed within margins

UG Electric Easement 10/2003
065273/105042471
3902E118

Rosie M. Carter
(Signature of Notary)
Rosie M. Carter
(Print or stamp name of Notary)
NOTARY PUBLIC in and for the State of
Washington, residing at Bellingham, Wa
My Appointment Expires: 6/28/2011

EXHIBIT "A"

Legal Description:

That portion of the West half of the Northwest quarter of Section 30, Township 39 North, Range 2 East of W.M., Whatcom County, Washington, described as follows:

Commencing at the Southwest corner of the said Northwest quarter of Section 30; thence North $01^{\circ}45'55''$ West along the West line of said subdivision, a distance of 1980.00 feet (30 chains) to the point of beginning; thence North $87^{\circ}41'30''$ East parallel to the South line of said Northwest quarter, a distance of 420.59 feet; thence South $00^{\circ}51'54''$ East 500.19 feet to the Northwest corner of that tract of land described under Whatcom County Auditor's File No. 1525469; thence South $01^{\circ}45'55''$ East along the West line of said tract parallel to the West line of said Northwest quarter a distance of 965.79 feet to the centerline of Douglas Road; thence South $58^{\circ}21'25''$ West along said centerline a distance of 169.21 feet; thence South $61^{\circ}12'40''$ West along said centerline a distance 237.34 feet to a curve to the left having a radius of 100.00 feet the center of which bears South $28^{\circ}47'20''$ East; thence along said centerline on said curve through a central angle of $62^{\circ}58'35''$ an arc distance 109.91 feet to the said West line of the Northwest quarter; thence North $01^{\circ}45'55''$ West along said West line a distance of 1743.15 feet to the point of beginning.

EXCEPT County Road;

Situate in the County of Whatcom, State of Washington.